

		Defendants argue that this action should be stayed or dismissed on forum non conveniens grounds because Texas is a suitable alternative forum, the parties agreed that Texas law would govern their relationship, all payroll and tax records are Texas-based, and all witnesses with knowledge of the employment relationship reside in Texas, Florida, or Missouri, and not California. Defendants provide no argument or evidence showing that Texas is a suitable alternative forum for Plaintiff's claims. Further, the existence of a choice of law clause does not support Defendants' Motion, as California courts are capable of applying the laws of another state. (Animal Film, Inc. v. D.E.J. Productions, Inc. (2011) 193 Cal.App.4th 466, 475.) Lastly, while the location of evidence and witnesses is relevant to the forum non conveniens analysis, Defendants only argue that the payroll and tax records are Texas-based, not that they exist only in Texas and would be difficult to obtain in California. Further, their argument that no witnesses are located in California is belied by the fact that they both, along with Plaintiff, reside in this state. As a California resident, Plaintiff's choice of forum must not be disturbed " 'unless the balance is strongly in favor of the defendant.' " (EpicentRx, Inc. v. Superior Court (2025) 18 Cal.5th 58, 73.) Here, Defendants have not carried their burden to show that the balance tips strongly in their favor. In light of all the above, the Motion is DENIED. Moving party to give notice
108	Lovato vs. Valencia 24-01397472	Motion for Leave to File First Amended Complaint The Motion for Leave to Amend brought by Plaintiff Brandon Lovato is GRANTED, pursuant to Code of Civil Procedure section 473.

		Pursuant to Code of Civil Procedure section 473, subdivision (a), the court may, “in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars....” (Code Civ. Proc., § 473, subd. (a).) “[T]he trial court has wide discretion in allowing the amendment of any pleading [citations], [and] as a matter of policy the ruling of the trial court in such matters will be upheld unless a manifest or gross abuse of discretion is shown.” (Melican v. Regents of University of California (2007) 151 Cal.App.4th 168, 175.) “[T]he court’s discretion will usually be exercised liberally to permit amendment of the pleadings.” (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.) “The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (Ibid.) While there is authority which indicates that “even if a good amendment is proposed in proper form, unwarranted delay in presenting it may – of itself – be a valid reason for denial” (Eng v. Brown (2018) 21 Cal.App.5th 675, 707), a great deal of authority demonstrates that “[w]here no prejudice is shown to the adverse party, the liberal rule of allowance prevails.” (Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 564.) Additionally, “[i]t is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (Berman v. Bromberg (1997) 56 Cal.App.4th 936, 945; see also Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048.) Here, Plaintiff seeks leave to add a prayer for punitive damages, as well as related factual allegations, against Defendant Orange Team Los Angeles, Inc. Plaintiff’s counsel explains that the basis for the amendment was not discovered until December 19, 2025, when Plaintiff’s counsel took the deposition of Orange Team
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	Los Angeles, Inc’s PMQ. (Arias Decl. ¶¶ 3-4, 7.) The motion was filed in March 2026. (ROA 99.) Defendant Orange Team Los Angeles, Inc. opposes the motion on the grounds that amendment would be futile and Defendant would be prejudiced by allowing the amendment at this point in the proceedings. While it is true that leave to amend may be denied “where permitting an amendment would be futile” such as “where the amendment does not state a cause of action” (Singh v. Lipworth (2014) 227 Cal.App.4th 813, 828), “the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.” (Kittredge Sports. Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048; See also Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2024) ¶6:644 [“Ordinarily, the judge will not consider the validity of the proposed amended pleading in deciding whether to grant leave to amend. Grounds for demurrer or motion o strike are premature.”])) As to prejudice, trial is nearly eight months away. While Defendant expresses concern that the amendment will expand the scope of litigation and require additional discovery, these concerns are present in virtually every case in which leave to amend is granted. Further, in light of the narrow scope of the amendment and a significant amount of time left before trial, the minimal prejudice to the defendant does not override the policy favoring amendment. Plaintiff shall file and serve the proposed First Amended Complaint within 10 days. Plaintiff to give notice.
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109	Cunningham vs. FCA US, LLC. 24-01431302	Motion for Bifurcation Defendant FCA US, LLC (“Defendant”) moves for an order bifurcating trial with regard to plaintiffs Dana Lynn Cunningham and Cara Leigh Cunningham’s (“Plaintiffs”) claim for punitive damages, precluding Plaintiffs from introducing evidence of or otherwise referring to Defendant’s financial condition unless and until Plaintiffs prove a prima facie case of liability for punitive damages, pursuant to Civil Code section 3295(d). Section 3295(d) provides, in relevant part: “The court shall, on application of any defendant, preclude the admission of evidence of that defendant’s profits or financial condition until after the trier of fact returns a verdict for plaintiff awarding actual damages and finds that a defendant is guilty of malice, oppression, or fraud in accordance with Section 3294.” “[I]n practice bifurcation under this section means that all evidence relating to the amount of punitive damages is to be offered in the second phase, while the determination whether the plaintiff is entitled to punitive damages (i.e., whether the defendant is guilty of malice, fraud or oppression) is decided in the first phase along with compensatory damages.” (Holdgrafer v. Unocal Corp. (2008) 160 Cal.App.4th 907, 919.) Pursuant to section 3295(d), Defendant’s Motion to Bifurcate is GRANTED. It is ORDERED that Plaintiffs shall be precluded from admitting evidence of Defendant’s financial condition in the first phase of trial and shall not introduce such evidence unless and until Plaintiffs have established a prima facie case of their entitlement to punitive damages. Moving party to give notice
110	Konkimalla vs. Bose 21-01221950	Motion to Strike or Tax Costs